

STATE OF VERMONT

SUPERIOR COURT

Unit

CRIMINAL DIVISION

Case No. _____

In RE:

DOB:

STIPULATION TO EXPUNGE CRIMINAL HISTORY RECORD

We, the undersigned Defendant and State’s Attorney, hereby agree that the offense(s) meet the requirements for expungement pursuant to 13 V.S.A. §7602 and that the Court may issue an Order to expunge the criminal history record for the offense(s) described below:

Description of Offense	Date of Offense	Incident Number	Docket Number <i>(if any)</i>
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

We further understand that the effect of this Order will be to expunge any records of arrest, conviction or sentencing for this/these offense(s) and that the Defendant will hereafter be treated in all respects as if he or she had never been arrested, convicted, or sentenced for the offense(s).

If the petition is granted, the court will send a copy of the order to the defendant, the defendant’s attorney, the prosecuting attorney’s office, the Vermont Crime Information Center, the arresting agency, the Restitution Unit of the Vermont Center for Crime Victim Services, and the Department of Motor Vehicles if pertaining to a motor vehicle charge. If there are other state entities the court should notify, please list the agency name and address here:

State Agency	Address
_____	_____
_____	_____

Documents from Other Parties in the Case

I understand that the other parties in the case are required to provide me with a copy of all documents they file with the court. If I consent, the other parties may send me documents by email instead of by mail.
I consent to receive documents from the other parties at the email provided below:

☐ YES ☐ NO

Defendant:

Date: _____ Signature _____

Printed Name _____

Mailing Address

Phone Number _____

Email Address _____

State’s Attorney:

Date: _____ Signature _____

Printed Name _____

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I consent to receive documents from the other parties at the email provided below:

☐ YES ☐ NO

Defendant:

Date: _____ Signature _____

Printed Name _____

Mailing Address

Phone Number _____

Email Address _____

State’s Attorney:

Date: _____ Signature _____

Printed Name _____

ORDER

Based upon the agreement of the Defendant and the State’s Attorney and pursuant to 13 V.S.A. §7602, it is hereby ORDERED that criminal history record of the offense(s) described above be expunged.

All records related to the arrest, conviction or sentencing for this/these offense(s) shall be expunged and that the Defendant will hereafter be treated in all respects as if he or she had never been arrested, convicted of sentenced for the offense(s).

- cc: State’s Attorney
- Arresting Agency
- Diversion
- DMV, if applicable
- VCIC
- Defendant
- Defender General
- Attorney General

ORDER

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